

Franciscus Dylan Rosario,
7624 Melody Drive,
Rohnert Park, CA 94928,
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

MEMORANDUM OF POINTS

AND AUTHORITIES

OPPOSITION TO FEE MOTION

Hearing: September 8, 2026

Time: 9:00 a.m.

Dept.: 301

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AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO ACCEPT

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure section 425.16, subdivision (c), as applicable to the fee motion opposed.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.
4. The Court's authority to consider the substance is under Code of Civil Procedure section 425.16, subdivision (c), and California Rules of Court, rules 3.1110 and 3.1113.
5. This paper is filed August 14, 2026, which is early and still timely under Code of Civil Procedure section 1005, subdivision (b), and California Rules of Court, rule 3.1300, measured from August 11, 2026 service of the motion set for September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670, 10369671, 10369673). Plaintiff opposes the motion and does not concede a stipulated date.

Hearing: September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670 notice, 10369671 O'Connell declaration, 10369673 MPA; served August 11, 2026). Plaintiff opposes the motion and does not concede a stipulated date. Hon. Christine Van Aken. Case No. CGC-25-631801.

PLAINTIFF'S MEMORANDUM OF POINTS AND AUTHORITIES IN OPPOSITION TO DEFENDANTS' MOTION FOR ATTORNEYS' FEES AND COSTS UNDER CCP section 425.16(c)

I. INTRODUCTION

Defendants CSAA Insurance Exchange; Carbone, Smith & Koyama; and Michael R. Chambers move under Code of Civil Procedure section 425.16(c) for **\$35,973.00** in attorney fees and

1 **\$1,137.46** in costs, totaling **\$37,110.46**, set for September 8, 2026, 9:00 a.m., Department 301
2 (ROA-confirmed; Tx 80309587; DocIDs 10369670 notice, 10369671 O’Connell declaration, 10369673
3 MPA; served August 11, 2026). Plaintiff opposes the motion and does not concede a stipulated
4 date. MC-010 / Memorandum of Costs is not a separate ROA DocID in the August 13, 2026
5 GetROA harvest (papers state concurrent filing).

6 The motion overreaches on five fronts:

7 **[1] Lodestar inflation.** Counsel claims **169.30 hours** litigating “this case ... in its entirety”
8 through July 10, 2026, at \$210 per hour, plus **two anticipated hours** for the fee hearing, to
9 reach \$35,973.00. (O’Connell Decl. para. 11; Def. MPA at 3-5.) The served Exhibit C invoice
10 face shows a billable total of **\$34,961.50** for 169.30 hours, which does not equal \$210 x 169.30
11 (\$35,553.00). That arithmetic gap alone requires denial or reduction until reconciled. Block-
12 billing, CCP 436 entries, and non-strike work must be taxed. (*Ketchum v. Moses* (2001) 24 Cal.4th
13 1122, 1131-1134; *Frym v. 601 Main Street LLC* (2022) 82 Cal.App.5th 613, 620-621.)

14 **[2] Scope: section 425.16(c) is not a blank check for the entire case.** Mandatory fees under sec-
15 tion 425.16(c) are those incurred **in connection with the special motion to strike**, not every hour
16 of case administration. (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1320;
17 *569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426,
18 433.) Defendants admit they previously submitted a **reduced** invoice limited to anti-SLAPP prepa-
19 ration, meet-and-confer, drafting, filing, and appearance, then “no longer reduce[]” after deciding
20 the whole case is recoverable. (O’Connell Decl. paras. 8, 10.) The statute does not authorize that
21 expansion.

22 **[3] Cross-case duplication versus the 802 fee motion.** The same firm notices a separate CCP
23 425.16(c) fee motion in CGC-25-631802 for **\$32,928.27** (hearing August 26, 2026). Combined
24 demand across both cases approaches **\$70,000**. Shared research, overlapping subject matter, and
25 dual-matter billing for the same work product cannot be recovered twice.

26 **[4] Apportionment across parties and motions.** Three moving defendants share one lodestar.
27 Fees for the demurrer / CCP 436 stack, for motions taken off calendar (including the CCP 436
28 motion off calendar May 22, 2026, per the register of actions), and for work not tied to the granted

1 special motion are not mandatory anti-SLAPP fees.

2 **[5] Fee falls with appeal; calendar note.** Plaintiff preserves that any fee award falls if the August
3 6, 2026 anti-SLAPP order is reversed on appeal. (Code Civ. Proc., section 425.16(i).) Sepa-
4 rately: September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs
5 10369670 notice, 10369671 O’Connell declaration, 10369673 MPA; served August 11, 2026).
6 Plaintiff opposes the motion and does not concede a stipulated date. Facial notice from August
7 11, 2026 service appears adequate under CCP 1005(b); Plaintiff notes the unilateral setting (non-
8 stipulation) for the record and does not ask the Court to vacate the ROA-confirmed hearing on that
9 ground alone.

10 The Court should deny the motion or reduce it to a verified anti-SLAPP-only lodestar after taxing
11 nonrecoverable hours and denying duplicative costs.

12 **II. LEGAL STANDARDS**

13 **A. MANDATORY FEES, DISCRETIONARY AMOUNT**

14 A prevailing defendant on a special motion to strike “shall be entitled to recover that defendant’s
15 attorney’s fees and costs.” (Code Civ. Proc., section 425.16(c)(1).) Entitlement is mandatory;
16 **amount** is discretionary and must be reasonable. (*Trapp v. Naiman* (2013) 218 Cal.App.4th 113,
17 122; *Ketchum*, 24 Cal.4th at 1131-1134.)

18 **B. LODESTAR METHOD**

19 Trial courts use the lodestar method: reasonable hours multiplied by a reasonable hourly rate pre-
20 vailing in the community for similar work. (*Frym*, 82 Cal.App.5th at 620-621; *Ketchum*, 24 Cal.4th
21 at 1131-1132.) The Court may reduce for inefficiency, duplication, block-billing that obscures task
22 allocation, and work unrelated to the motion. (*Christian Research Institute*, 165 Cal.App.4th at
23 1320, 1325-1326.)

24 **C. SCOPE LIMITED TO THE SPECIAL MOTION TO STRIKE**

25 Section 425.16(c) compensates fees incurred **on the special motion to strike**, including related
26 discovery and appeal of the anti-SLAPP order when applicable, not unrestricted fees for defending
27 the entire lawsuit as ordinary litigation. (*Christian Research Institute*, 165 Cal.App.4th at 1320;

1 569 East County Boulevard, 6 Cal.App.5th at 433; see also *City of Industry v. City of Fillmore*
2 (2011) 198 Cal.App.4th 191, 218 [reasonableness and nexus].) Defendants’ contrary reading (Def.
3 MPA at 4: statute “does not limit” fees to preparing and filing the motion, and therefore supports
4 “full” case fees) conflates entitlement language with unlimited scope.

5 **D. APPORTIONMENT AND NO DOUBLE RECOVERY**

6 Where multiple parties or multiple motions are involved, the Court apportions. Fees for unsucces-
7 ful, withdrawn, or collateral motions are not recoverable merely because an anti-SLAPP motion
8 later succeeded. Costs sought under section 425.16(c) cannot be awarded a second time through
9 an MC-010 for the identical dollars.

10 **E. FEE AWARD CONTINGENT ON THE ORDER**

11 An anti-SLAPP order is appealable. (Code Civ. Proc., section 425.16(i).) A fee award predicated
12 on that order is contingent: if the order falls on appeal, the fee award falls with it. Plaintiff preserves
13 that contingency and asks the Court to deny or reduce the present demand under section 425.16(c),
14 and, where a notice of appeal and stay notice are on file, to deny or continue under Code of Civil
15 Procedure section 916 and *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180.

16 **III. ARGUMENT**

17 **ARGUMENT I**

18 **The lodestar is unreliable and must be denied or reduced.**

19 **A. Arithmetic mismatch**

20 Counsel declares 169.30 hours at \$210 through July 10, 2026, plus two anticipated hearing hours,
21 totaling \$35,973.00. (O’Connell Decl. para. 11.) Simple arithmetic: $169.30 \times \$210 = \$35,553.00$;
22 plus $2 \times \$210 = \420.00 ; sum = \$35,973.00. But the served Exhibit C invoice face (OCR of export
23 item 00076, att_04) reports a **billable total of \$34,961.50** for 169.30 hours. The declaration, the
24 invoice total, and the \$210 rate cannot all be true without explanation. Until Defendants reconcile
25 Exhibit C line-by-line to the claimed \$35,973.00, the Court should deny fees or reduce to zero
26 pending a verified, consistent lodestar.

1 **B. “Case in its entirety” is not the lodestar unit**

2 Paragraph 11 of the O’Connell Declaration states counsel spent 169.30 hours “litigating this case
3 against Plaintiff, in its entirety,” and moves for “all fees incurred by Defendants in being forced
4 to litigate this meritless lawsuit.” That framing abandons lodestar discipline. The Court awards
5 reasonable hours on the special motion to strike, not a case-wide retainer dump.

6 **C. Block-billing, padding, and non-strike entries**

7 Plaintiff objects to any block entry that mixes anti-SLAPP drafting with demurrer, CCP 436, CMC,
8 withdrawal notices, State Bar / agency correspondence responses, or general email volume at-
9 tributed to “AI deluge” rhetoric. The Exhibit C OCR reflects numerous entries referencing **CCP**
10 **436** motion work. Work on a motion that did not produce the fee entitlement (and that went off cal-
11 endar) is not recoverable as mandatory section 425.16(c) fees. Anticipated hearing time for this fee
12 motion may be considered only to the extent reasonable and only after a proper anti-SLAPP-only
13 base lodestar is established; it cannot scrub arithmetic inconsistencies in Exhibit C.

14 **D. Rate**

15 Plaintiff does not lead with a rate challenge. The \$210 blended rate is modest for San Francisco.
16 The fight is **hours and scope**, not sticker shock.

17 **Relief under Argument I:** Deny fees, or reduce to a reconciled, anti-SLAPP-only lodestar after
18 taxing nonrecoverable hours.

19 **ARGUMENT II**

20 **Section 425.16(c) does not authorize recovering the entire case file.**

21 Defendants previously attached to their anti-SLAPP reply a reduced invoice “limited only to those
22 matters directly related to preparing, meet and confer efforts regarding, drafting, filing, and appear-
23 ing in Court with respect to Defendants’ Anti-SLAPP motion.” (O’Connell Decl. para. 8.) They
24 now “no longer reduce[]” after “review and analysis of controlling statutory and case authorities.”
25 (Id. para. 10; Def. MPA at 3.)

26 That sequence is a concession that the anti-SLAPP-only figure was the correct starting point. The
27 later expansion rests on the incorrect premise that section 425.16(c)’s phrase “attorney’s fees and
28 costs” means every hour of the case. It does not. (*Christian Research Institute*, 165 Cal.App.4th at

1320.) Post-ruling briefing on reconsideration and related preservation filings may be recoverable only to the extent they are **fees on the special motion** (including fees to establish entitlement), not as punishment for Plaintiff’s exercise of statutory reconsideration and appellate rights. Email volume, agency referrals, and “Contra Costa threat” rhetoric are not a substitute for task-level proof.

Relief under Argument II: Limit any award to verified anti-SLAPP-connected hours; exclude general case administration.

ARGUMENT III

Cross-case duplication with the CGC-25-631802 fee motion requires reduction.

Porter Scott represents overlapping defendants across CGC-25-631801 and CGC-25-631802. A separate fee motion in 802 seeks **\$32,928.27** under the same statute for overlapping subject matter (anti-SLAPP practice, same carrier, same counsel, same fact cluster). The 801 Exhibit C OCR includes at least one narrative reference to “COMPLAINT IN CASE NO. CGC-25-631802.” Plaintiff will present a line-item crosswalk at hearing if Defendants do not reconcile first.

Double recovery for shared research, template motions, and dual-matter conferences is classic lodestar abuse. The Court should require a showing that no hour claimed in 801 was also claimed (or will be claimed) in 802, and should reduce any overlapping block.

Relief under Argument III: Tax all hours not shown unique to CGC-25-631801 anti-SLAPP work.

ARGUMENT IV

Apportionment across moving parties and collateral motions.

Three defendants move jointly. Plaintiff does not concede that every hour was reasonably incurred for each. Fees attributable solely to Carbone / Chambers defense theories, or to motions other than the special motion to strike (demurrer; CCP 436 strike; CMC practice; withdrawal filings), must be apportioned out. The cost detail attached to the MC-010 (same \$1,137.46 package) lists e-filing charges for CMC statements, notices of withdrawal, CourtCall for an ex parte appearance, and multiple non-strike filings. That cost profile confirms the billing ecosystem extends far beyond the special motion.

1 **Relief under Argument IV:** Apportion; deny fees for collateral and off-calendar motion practice.

2 **ARGUMENT V**

3 **Costs of \$1,137.46 cannot be awarded twice; fee-motion costs should be denied or deferred.**

4 Defendants seek \$1,137.46 as “costs” in this fee motion **and** concurrently file an MC-010 for the
5 **same** \$1,137.46. (O’Connell Decl. paras. 12-14; Def. MPA at 3.) Double recovery is improper.
6 Plaintiff has separately noticed a Motion to Tax or Strike Costs under CRC 3.1700(b). This Court
7 should:

- 8 1. Deny costs in the fee motion as duplicative; or
- 9 2. Defer all cost issues to the tax-motion calendar; and
- 10 3. In no event enter an order that awards \$1,137.46 under both vehicles.

11 Item-level allowability (including the \$1,064.95 filing/motion aggregation and \$72.51 service line)
12 is addressed in the tax papers and incorporated by reference.

13 **Relief under Argument V:** Deny or defer costs; no double recovery.

14 **ARGUMENT VI**

15 **Any fee award falls with the anti-SLAPP order on appeal; preserve without leading.**

16 The August 6, 2026 order granting the special motion to strike is appealable. (Code Civ. Proc.,
17 section 425.16(i).) Plaintiff filed a notice of appeal from that order and related rulings, including
18 the August 11, 2026 denial of reconsideration, on August 14, 2026. Appellate number TBA. Plain-
19 tiff does not recite a File & ServeXpress transaction identifier in these papers. Plaintiff preserves
20 the position that a fee award under section 425.16(c) is contingent on the order’s survival. This
21 Court need not stay the hearing to recognize that contingency in any order it enters: any award
22 should state it is without prejudice to appellate rights and falls if the order is reversed. If a separate
23 stay notice under CCP 916 / *Varian Med. Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180 is already
24 on file, Plaintiff incorporates that notice by reference and objects to adjudication of embraced fee
25 proceedings while the stay operates. Stay is not the lead argument of this Memorandum; lodestar
26 and scope are.

27 **Relief under Argument VI:** Deny fees; if any award enters, expressly preserve appellate contin-

1 gency.

2 **ARGUMENT VII**

3 **Unilateral hearing date: noted, not overplayed.**

4 Defense correspondence of August 10-11, 2026, reflects a unilateral reservation of September 8,
5 2026. The hearing is now ROA-confirmed: September 8, 2026, 9:00 a.m., Department 301 (ROA-
6 confirmed; Tx 80309587; DocIDs 10369670 notice, 10369671 O'Connell declaration, 10369673
7 MPA; served August 11, 2026). Plaintiff opposes the motion and does not concede a stipulated
8 date. Counting court days from August 11, 2026 service, notice appears facially consistent with
9 CCP 1005(b)'s 16-court-day minimum. Plaintiff therefore does **not** move to quash notice on that
10 ground alone, but objects to any proposed order recital that Plaintiff stipulated to the date or sub-
11 mitted on the motion.

12 **Relief under Argument VII:** Strike any "unopposed" / "stipulated hearing date" recital from
13 Defendants' proposed order.

14 **IV. CONCLUSION**

15 Defendants ask for a case-wide fee dump dressed as a mandatory anti-SLAPP award. The Court
16 should deny the motion or reduce it to a verified, anti-SLAPP-only lodestar after taxing arithmetic
17 inconsistencies, non-strike hours, cross-case duplication, and collateral motion practice; deny or
18 defer the \$1,137.46 costs as duplicative of the MC-010; and enter Plaintiff's [Proposed] Order.

19 Dated: August 14, 2026

20 

21 Franciscus Dylan Rosario
22 Plaintiff, In Pro Per

23 7624 Melody Drive
24 Rohnert Park, CA 94928
25 650.488.7510
26 E: soltrinox@gmail.com